

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sally Lynn Edmonds	Team: Squad #07	CCRB Case #: 201607838	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 09/12/2016 4:08 PM	Location of Incident: BJs Wholesale Club	18 Mo. SOL 3/12/2018	Precinct: 44		
Date/Time CV Reported Tue, 09/13/2016 10:53 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 09/13/2016 10:53 AM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Edlor Etienne	07361	946971	MAN CT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Brenda Colon	08591	948801	043 PCT		
Officer(s)	Allegation	Inv. Div. Recommendation			
A . POM Edlor Etienne	Abuse: Police Officer Edlor Etienne threatened § 87(2)(b) with the use of force.	A . Substantiated			
B . POM Edlor Etienne	Off. Language: Police Officer Edlor Etienne made remarks to § 87(2)(b) based upon his perceived socioeconomic status.	B . Unsubstantiated			

Case Summary

On September 13, 2016, § 87(2)(b) filed the following complaint via the CCRB online website (Board Review 04).

On September 12, 2016, at approximately 4:08 p.m., PO Edlor Etienne of Manhattan Court was working a paid detail at BJ's Wholesale Club, located at 610 Exterior Street in the Bronx, when he noticed § 87(2)(b) enter the store. PO Etienne suspected § 87(2)(b) was an unauthorized cab driver attempting to solicit customers, so he told him to leave the store. § 87(2)(b) called his girlfriend, § 87(2)(b) who was shopping, and asked her to come to the store entrance to verify that he was not a cab driver.

§ 87(2)(b) confirmed to PO Etienne that § 87(2)(b) was not a cab driver. PO Etienne allegedly became irate and told § 87(2)(b) "Let's take this outside," "I get off at 10:30," and "If you feel froggy, leap" (**Allegation A**). As § 87(2)(b) walked away, PO Etienne allegedly shouted, "Enjoy your EBT card" (**Allegation B**). § 87(2)(b) and § 87(2)(b) walked away from PO Etienne and resumed shopping.

About two minutes later, § 87(2)(b) returned and wrote down PO Etienne's name and badge number on a piece of paper. He also took a video of PO Etienne with his phone. PO Etienne appeared to take a video of § 87(2)(b). The two men engaged in a verbal altercation.

PO Etienne then approached § 87(2)(b) while simultaneously removing his duty belt, an action that § 87(2)(b) perceived as threatening (**within Allegation A**).

PO Etienne's partner, PO Brenda Colon of the 43rd Precinct, was present for portions of this incident, as were § 87(2)(b) and civilian witnesses unknown to § 87(2)(b) and § 87(2)(b) (Board Review 03). § 87(2)(b) and § 87(2)(b) are BJ's employees.

Video footage was obtained from BJ's surveillance cameras. The footage shows PO Etienne removing his belt while advancing toward § 87(2)(b). The full video can be viewed in IA #33 and 92 (Board Review 01; 02; 19). Relevant portions of the video are embedded below (Board Review 25).



201607838_20161025_0758_DM.mp4

IAB also conducted an investigation into the incident and determined that misconduct occurred; however, the punishment received by PO Etienne, if any, remains unknown to the CCRB (Board Review 07). This case went beyond 90 days by less than a month due to delays in receiving the subject officer's GO-15's.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of December 19, 2016, § 87(2)(b) has not filed a Notice of Claim with the New York City Office of the Comptroller.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 20).
- This is the first CCRB complaint filed against PO Etienne. He has been a member of the NYPD for eight years (Board Review 21).

Findings and Recommendations

Allegations Not Pleaded

- **Abuse of Authority-Stop:** Although PO Etienne approached § 87(2)(b) and told him to leave BJ's Wholesale Club, § 87(2)(b) was free to go at all times. Therefore, a stop allegation was not pleaded.
- **Abuse of Authority-Refusal to Provide Name and Shield:** PO Etienne did not verbally state his name and shield to § 87(2)(b) despite § 87(2)(b) request that he do so. However, PO Etienne puffed out his chest and stood still while § 87(2)(b) recorded his name and badge number on a piece of paper, and § 87(2)(b) was able to successfully relay that message to IAB. Therefore, a refusal to provide name and shield allegation was not pleaded against PO Etienne.

Recommendations

Allegation A – Abuse of Authority: Police Officer Edlor Etienne threatened § 87(2)(b) with the use of force.

It is undisputed that PO Etienne and § 87(2)(b) engaged in an argument, and during that argument PO Etienne removed his duty belt (Board Review 02;13; 17).

§ 87(2)(b) provided statements about this incident during the initial filing of the complaint with IAB on September 12, 2016, the filing of the online complaint with the CCRB on September 13, 2016, and he provided both an in-person and written statement to the CCRB on September 19, 2016 (Board Review 04; 13; 10; 22). He was consistent among his statements with only mild variations. § 87(2)(b) alleged that PO Etienne told him, "I get off at 10:30," "Meet me outside," and, "If you feel froggy then leap." § 87(2)(b) took each of these statements as a threat or provocation to get him to engage in a fight. During their argument, PO Etienne also took off his duty belt, while advancing toward § 87(2)(b). § 87(2)(b) stated that he believed PO Etienne took off his duty belt because he was preparing to engage in a physical fight with him.

§ 87(2)(b) who witnessed a portion of § 87(2)(b) and PO Etienne's interaction, corroborated § 87(2)(b) allegations with mild variations. She stated that PO Etienne said, "If you're feeling froggy, leap," "I get off at 10:30," and "If you want to fight let's take it outside." She also said that § 87(2)(b) was speaking in a normal tone of voice and PO Etienne had raised his voice (Board Review 14). § 87(2)(b) did not witness PO Etienne remove his duty belt.

§ 87(2)(b) who was standing about 15 to 30 feet away from § 87(2)(b) and PO Etienne throughout their interaction, stated that she heard § 87(2)(b) saying, "This cop right here invited me to fight and said, 'let's take this outside,'" while he recorded on his phone (Board Review 15). § 87(2)(b) also stated that § 87(2)(b) voice was far louder than PO Etienne's because while she could clearly hear § 87(2)(b) she could not make out PO Etienne's words from where she was standing. § 87(2)(b) saw PO Etienne take off his duty belt, at which point PO Colon physically interjected her body between PO Etienne and § 87(2)(b) in an apparent attempt to separate them. She saw PO Colon's forearm on PO Etienne's chest, pushing him back.

§ 87(2)(b) who only witnessed a portion of this incident, did not see PO Etienne remove his duty belt or any actions that preceded this. She stated that she heard PO Etienne say, "I get off at 10:30 p.m.," but denied hearing the other alleged statements (Board Review 16). She stated that § 87(2)(b) asked PO Etienne to "come outside," rather than the other way around. She stated that § 87(2)(b) spoke critically of the NYPD, and "ranted" about police-involved shootings. § 87(2)(b) told PO Etienne that if he did not have his uniform on he would be "nothing," and wouldn't be "big and bad." § 87(2)(b) also stated that PO Etienne had told § 87(2)(b) to leave three or four times while in her presence.

PO Etienne said he confirmed to § 87(2)(b) that his shift ended at 10:30 p.m., only after § 87(2)(b) first said, "I know you leave at 10:30 p.m." (Board Review 17). PO Etienne did not remember saying, "If you feel froggy, then leap," but he stated that it was possible that he had said it during the course of their dispute. He denied saying "meet me outside," and attributed this statement to § 87(2)(b). PO Etienne characterized his interaction with § 87(2)(b) as a "dispute" in his memo book and in-person statement (Board Review 17; 24). PO Etienne said § 87(2)(b) was making statements such as "cops are pussies," and "you are nothing without your gun and badge." § 87(2)(b) also allegedly said that he was going to record PO Etienne's behavior and get "paid," as a result of the incident. PO Etienne admitted that his response to § 87(2)(b) alleged taunts was "not the best way to handle" the situation. He confirmed that he was upset during his interaction with § 87(2)(b). PO Etienne admitted only to "unbuckling" his belt, until he was shown the video footage, at which point he conceded to removing his belt. PO Etienne explained that he took off his belt in order to show § 87(2)(b) that he would still "talk" to him without his gun and uniform on, because § 87(2)(b) had said that PO Etienne would not "talk" to him if he weren't wearing his gun and uniform. PO Etienne never had any intention of detaining or arresting § 87(2)(b).

PO Colon was not present for the entirety of the incident. She denied hearing PO Etienne make any of the above threats. She stated that § 87(2)(b) called PO Etienne a "coward," and said that "all cops were cowards," and that they were "nobody" without their gun and shield. According to PO Colon, § 87(2)(b) was the one who brought up that the officers finished their shift at 10:30 p.m., and that he had likely inferred it based on the store's closing time.

Video footage from the incident does not contain audio. § 87(2)(b) and PO Etienne appear to engage in a heated argument. § 87(2)(b) is seen pacing and both men are gesturing vigorously with their arms while speaking to each other (Board Review 02). The video shows PO Etienne taking off his duty belt while approaching § 87(2)(b) who was walking away. The belt swung from PO Etienne's right hand for seven seconds, at which point he strapped the belt back around his waist. During those seven seconds in which PO Etienne had his belt off, PO Colon stepped between PO Etienne and § 87(2)(b) and put her hands on PO Etienne's chest in order to push him away from § 87(2)(b).

A member of the service may use force when it is reasonable to ensure the safety of a member of the service or place a person into custody. Patrol Guide, Section 221-01 (Board Review 08). A member of service shall not use any level of force to punish or retaliate against a subject. Patrol Guide, Section 221-012.

The investigation credited § 87(2)(b) account of this incident. First, although PO Etienne stated he only removed his belt in order to "talk" to § 87(2)(b) the video footage showed PO Etienne removing his belt during the course of an argument. The manner in which the video showed PO Etienne advancing toward § 87(2)(b) to the point where PO Colon had to physically hold her partner back. § 87(2)(g)

Secondly, although not all of the statements made by § 87(2)(b) were corroborated, witnesses, including one independent witness, did corroborate portions of the conversation as alleged by § 87(2)(b). In addition, § 87(2)(b) was consistent among the four statements he provided. Lastly, PO Etienne himself acknowledged that he may have said, "If you feel froggy, then leap," during the course of their dispute. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

At the moment when PO Etienne took off his belt, PO Colon intervened by pushing PO Etienne away from § 87(2)(b) § 87(2)(g)

Finally, PO Etienne's removal of his duty belt coincided with his statements, "I get off at 10:30 p.m.," and "If you feel froggy then leap," § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Offensive Language: Police Officer Edlor Etienne made remarks to § 87(2)(b) based upon his perceived socioeconomic status.

§ 87(2)(b) alleged that he was walking away from PO Etienne when PO Etienne shouted after him, “Enjoy your EBT card!” He alleged the statement in his in-person statement, a written statement and his online complaint (Board Review 04; 13; 22).

§ 87(2)(b) similarly stated that PO Etienne said “Go enjoy your EBT § 87(2)(b) did not hear PO Etienne make the offensive remark, and was standing at a distance of 15 to 30 feet away from them. § 87(2)(b) was not present during the portion of the incident when PO Etienne made the alleged statement.

PO Etienne did not recall saying, “Enjoy your EBT card,” or any comment related to § 87(2)(b) or § 87(2)(b) being on public assistance. He did not recall having any knowledge of their financial status. PO Colon did not recall PO Etienne making a statement regarding § 87(2)(b) EBT card.

Video footage of the incident does not contain audio. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Squad:

Investigator:	_____	<u>Lynn Edmonds</u>	_____
	Signature	Print	Date
Squad Leader:	_____	<u>Diana P. Townsend</u>	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date